

24NNCV04291 24NNCV04291

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Case Number: 24NNCV04291 Hearing Date: August 21, 2026 Dept: A

TENTATIVE RULING

AUGUST 21, 2026

MOTION FOR TRIAL PREFERENCE

Los

Angeles Superior Court Case # 24NNCV04291

MP: Plaintiff

Eduardo Lopez Trejo

RP: Defendant

Los Angeles Metropolitan Transportation

Authority

NOTICE:

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given

either by email at or by telephone at (818) 260-8412.

ALLEGATIONS:

Eduardo Lopez

Trejo ("Plaintiff") alleges that on June 8, 2023, a Los Angeles Metropolitan Transportation Authority's ("Defendant") bus operator negligently caused the bus doors to prematurely close on Plaintiff's foot as he was exiting the bus injuring him.

The First Amended

Complaint ("FAC"), filed November 6, 2024, alleges a single cause of action for General Negligence.

MOTION ON CALENDAR:

On July 27, 2026,
Plaintiff filed a Motion to Preferentially Set the Trial Date Pursuant to
C.C.P. § 36(a). On August 10, 2026,
Defendant filed an opposition. On August
14, 2026, Plaintiff filed a reply.

LEGAL STANDARD:

C.C.P. § 36(a)

provides in part: "A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings: (1) The party has a substantial interest in the action as a whole. (2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation."

To make the

findings required by C.C.P. § 36(a), evidence must be provided with the motion for preference establishing Plaintiff's age and the relevant conditions of their health warranting a preference. Pursuant to C.C.P. § 36.5, an attorney affidavit offered in support of a motion for preference may be based on information and belief as to the medical diagnosis and prognosis of a party. (See also Fox v. Superior Court (2018) 21 Cal.App.5th 529, 534 ["a motion under subdivision (a) may be supported by nothing more than an attorney's declaration 'based upon information and belief as to the medical

diagnosis and prognosis of any party'."].)

If a motion for preference based

on a party's age is granted, the matter must be set for trial not more than 120 days from the date the motion is granted.

(C.C.P. § 36(f).)

Pursuant to

C.C.P. § 36(e), in its discretion, the court may grant a motion for preference that is supported by a showing that satisfies the court that the interests of justice will be served by granting preference.

Finally, C.C.P.

§ 36(c)(1) requires that all essential parties be served with process or have appeared in the action in order to grant a motion for preference.

ANALYSIS:

Plaintiff moves for trial preference for

the currently scheduled trial such that it cannot be continued. A Final Status Conference is set for November 5, 2026 and a Jury Trial is set for November 9, 2026.

Plaintiff is currently 78 years old (DOB:

January 10, 1948). (Koncan Decl., ¶3.) Further, the Court finds that Plaintiff has a substantial interest in the action as he claims he was injured due to the closure of the bus doors on his foot. (See FAC generally.)

Plaintiff's counsel, Evan Koncan,

provides his declaration in support of the motion. Mr. Koncan states that he reviewed Plaintiff's medical records from various providers showing that Plaintiff was diagnosed with pulmonary fibrosis, chronic interstitial lung disease, bronchiectasis, and respiratory failure.

(Koncan Decl., ¶4.) He states

that as of April and May 2026, Plaintiff now requires the use of an oxygen tank, which was not required at the time of filing. (Id., ¶5.) Counsel states that Plaintiff has immense difficulty breathing and ambulating due to his lung condition and physical injuries, and that his conditions cause him to be fatigued easily, which impairs his ability to speak and accurately recall information. (Id., ¶¶5-6.) Counsel does not expect Plaintiff's conditions to meaningfully improve due to his age and condition, and believes they will worsen over time, thereby jeopardizing his ability to participate in the

litigation and achieve a resolution during his lifetime. (Id., ¶7.) He states that any recovery obtained after his passing would lose its intended purpose of addressing his immediate and personal needs such as medical care and quality of life improvements. (Id., ¶8.) Mr. Koncan states that Plaintiff's defense medical examination and deposition have been completed. (Id., ¶¶9-10.) The Court finds Mr. Koncan's declaration sufficient pursuant to section 36.5.

In opposition, Defendant argues that the motion is untimely because Plaintiff litigated this matter without seeking preference, such that there is no reason to believe his medical condition has or will substantially change; Plaintiff did not move under section 36(d), showing that his health is not such that he will not survive beyond six months; and Plaintiff's delay in seeking preference will prejudice Defendant because Defendant understood the matter to be set for trial in November 2026, but defense counsel has trials set for late October and early November, such that a continuance may be necessary.

Under section 36(a), there is no requirement that Plaintiff must file a motion for preference once he is 70 years old or that he waives his right to do so if he does not, upon being an eligible age, move for preference. Furthermore, subsection 36(d) applies to the court's discretion to also grant motions brought by a party suffering from an illness or condition raising substantial medical doubt of the survival of that party beyond six months. This is a separate basis to seek relief than subsection 36(a)'s mandatory provision for a party over the age of 70 years old who has a substantial interest in the action as a whole and his health is such that a preference is necessary to prevent prejudicing his interest in the litigation. Finally, subsection 36(a)'s standard does not include weighing the interests or inconveniences of other litigants, Defendant, or defense counsel's schedule. The only prejudice considered when analyzing mandatory preferential setting is the prejudice the moving party will face if preference is not granted.

Thus, there is substantive merit to granting this motion. The currently set November 9, 2026 trial date is within subsection 36(f)'s 120 days from today's hearing date (the 120th day would be December 19, 2026, which is a Saturday).

As trial has already been set for November 9, 2026, the trial date will remain.

The motion will be granted on the limited basis that the trial date will be considered a preferential trial date such that it cannot be continued beyond the statutory preferential time period from this order's date.

RULING:

In the event the parties submit on this tentative ruling, or a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Plaintiff Eduardo Lopez Trejo's Motion to Preferentially Set the Trial Date Pursuant to C.C.P. § 36(a) came on regularly for hearing on August 21, 2026 with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

THE

Motion for Trial Preference is GRANTED TO THE LIMITED EXTENT THAT THE CURRENT NOVEMBER 9, 2026 TRIAL DATE SHALL REMAIN AND BE DESIGNATED AS A PREFERENTIAL TRIAL DATE.

PLAINTIFF TO PROVIDE
NOTICE.

IT IS SO ORDERED.